

1. Line 7 through 16:

- 7 This Bill:
- 8 →defines terms;
- 9 →limits the amount of reserve funds maintained by cities and counties;
- 10 → ~~§~~→ [~~reduces the amount of the residential property tax exemption for rental~~
- ~~properties;~~
- 10a ~~with~~
- 11 ~~certain exceptions;~~
- 12 →~~clarifies the applicability of the residential exemption for owners of multiple primary~~
- 13 ~~residences in the state;~~] ←~~§~~
- 14 →requires counties to provide information to the Multicounty Appraisal Trust regarding
- 15 business entities that receive the residential exemption;
- 16 →excludes certain property valuation increases from the calculation of locally assessed new

2. Line 147 through 174:

- 147 (2) All tangible taxable property located within the state shall be assessed and taxed at a
- 148 uniform and equal rate on the basis of its fair market value, as valued on January 1,
- 149 unless otherwise provided by law.
- 150 (3) ~~§~~→ [{ ~~(a)~~ }] ←~~§~~ Subject to Subsections (4) through (6) and Section 59-2-103.5, for a
- 150a calendar year,
- 151 the fair market value of residential property located within the state is allowed a
- 152 residential exemption equal to ~~§~~→ [{ ~~:~~ }] ~~a 45% reduction in the value of the property.~~
- 153 [{ ~~(i) a 45% reduction in the value of the property if the residential property:~~ }]
- 154 [{ ~~(A) is the primary residence of one or more of the residential property's owners;~~ }]
- 155 [{ ~~(B) has only one parcel identification number; and~~ }]
- 156 [{ ~~(C) has fewer than three units; or~~ }]
- 157 [{ ~~(ii) except as provided in Subsection (3)(b), a 40% reduction in the value of the~~ }] ←~~§~~
- 158 ~~§~~→ [{ ~~property if the residential property:~~ }]
- 159 [{ ~~(A) does not qualify for a residential exemption under Subsection (3)(a)(i); and~~ }]
- 160 [{ ~~(B) is the primary residence of a tenant, regardless of whether the residential~~ }] ←~~§~~
- 161 ~~§~~→ [{ ~~property is the primary residence of one or more of the residential property's~~ }] ←~~§~~
- 162 ~~§~~→ [{ ~~owners.~~ }

163 [{ ~~(b)~~ Notwithstanding Subsection (3)(a)(ii), the fair market value of residential property
 164 }] ←Ŧ
 165 Ŧ→ [{ that is the primary residence of a tenant is allowed a residential exemption equal to }]
 166 ←Ŧ
 167 Ŧ→ [{ 45% for a calendar year if the residential property: }]
 168 [{ (i) is a multi-family rental unit; and }]
 169 [{ (ii) is subject to an extended low-income housing commitment and declaration of }] ←Ŧ
 170 Ŧ→ [{ restrictive covenants in accordance with the low-income housing tax credit }] ←Ŧ
 171 Ŧ→ [{ program described in Section 42, Internal Revenue Code. }]
 172 [{ (c) Residential property that does not qualify for a residential exemption under }] ←Ŧ
 173 Ŧ→ [{ Subsection (3)(a) or (b) is not allowed a residential exemption. }] ←Ŧ
 174 (4) Part-year residential property located within the state is allowed the residential
 exemption described in Subsection (3) if the part-year residential property is used as
 residential property for 183 or more consecutive calendar days during the calendar year

3. Line 175 through 189:

175 for which the owner seeks to obtain the residential exemption.
 176 (5) No more than one acre of land per residential unit may qualify for the residential
 177 exemption described in Subsection (3).
 178 (6) (a) Except as provided in [Subsections (6)(b)(ii) and (iii) Ŧ→ Subsection (6)(c) }]
 178a Subsections (6)(b)(ii) and (iii) ←Ŧ, a
 179 residential exemption described in Subsection (3) is limited to one primary residence
 180 per household Ŧ→ [{ , regardless of the number of ownership interests an owner has in
 180a { the }] ←Ŧ
 181 Ŧ→ [{ state, either as an individual or through a business entity }] ←Ŧ.
 182 Ŧ→ [{ (b) For purposes of Subsection (6)(a), primary residence is where domicile is
 182a established. }] ←Ŧ
 183 [(b) Ŧ→ (c)] (b) ←Ŧ An owner of multiple primary residences located within the
 183a state is allowed a
 184 residential exemption under Subsection (3) for:
 185 [(i) subject to Subsection (6)(a), the primary residence of the owner;]
 185a Ŧ→ (i) subject to Subsection (6)(a), the primary residence of the owner; ←Ŧ
 186 [(ii) Ŧ→ (i)] (ii) ←Ŧ each residential property that is the primary residence of a
 186a tenant; and
 187 [(iii) Ŧ→ (ii)] (iii) ←Ŧ subject to Subsection 59-2-103.5(4), each residential

187a property described in

188 Subsection 59-2-102(35)(b)(ii).

189 (7) If a business entity receives a residential exemption under this section, the county in